

Tentative Rulings
August 25, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: Since January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

13. *Navy Federal Credit Union v. Corona*, Case No. CIVSB2511311
Plaintiff's Motion for Judgment on the Pleadings
8/25/26, 9:00 a.m., Dept. S-17

This matter was continued from its original hearing on June 11, 2026

The Court would **GRANT** this unopposed motion.

As a preliminary matter, the Court considers the newly-filed Declaration submitted to satisfy the meet-and-confer requirement. Although the Court notes that no attempt to actually *call* the Plaintiff was made, the attached June 15th letter clearly requests dates for a phone call or video conference and that no response was received. (Kostelidis Decl., ¶13 & Exh. A.)

Here, the JOP rests on the argument that the Answer does not state facts sufficient to constitute a defense to the Complaint. Plaintiff notes that the Answer "admits that all statements of the Complaint are true." (Motion, 2:10.) More specifically, the Answer by this self-represented Defendant simply provides a narrative indicating that "he never intended to reach this point" with Plaintiff. (Answer, ¶13.) The Answer goes on to discuss the circumstances that made it difficult to "keep up with Federal Navy Credit Union Payments." (Answer, ¶14.)

A party may bring a motion for judgment on the pleadings after filing an answer and the time to demurrer has expired. (Code Civ. Proc., § 438(b)(1) & (f); *Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 548.) In this case, there are no denials or affirmative defenses provided by Defendant. For that reason, the Court would grant this motion.
